

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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MORDECHAI ECKHAUS,

Plaintiff,

- against-

Index No.:

Date Purchased:

SUMMONSCITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER ANDREA
LEMMON (Shield No.: 7338) and POLICE OFFICERS
“JOHN DOES 1-4” (assaulting police officers) in their official
and individual capacity.Plaintiff designates Kings as the
place of trial.The basis of venue is Plaintiff’s
place of residence.

Defendants.

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Plaintiff resides at: 432 Sterling
Street, Brooklyn, NY 11225**To the above-named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff’s attorneys within twenty days after the services of this summons exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
July 7, 2023**TAMIR MARKUS LLP**/s/ Zaki Isaac B. Tamir**Zaki Isaac B. Tamir, Esq.***Attorneys for Plaintiff*

866 United Nations Plaza, Ste. 481

New York, NY 10004

(212) 444-9970

DEFENDANTS’ ADDRESSES:Corporation Counsel
City of New York Law Department
100 Church Street
New York NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
MORDECHAI ECKHAUS,

Index No.

Plaintiff,

COMPLAINT

-against-

CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER ANDREA
LEMMON (Shield No.: 7338) and POLICE OFFICERS
“JOHN DOES 1-4” (assaulting police officers) in their official
and individual capacity,

Defendants.

-----X
Plaintiff, Mordechai Eckhaus (“Eckhaus” or “Plaintiff”), by and through his attorneys,
Tamir Markus LLP, complaining of the Defendants herein, respectfully alleges, upon
information and belief:

NATURE OF THE ACTION

1. This action is brought by Plaintiff for monetary relief for *inter alia* assault;
intentional infliction of emotional distress; battery; negligent infliction of emotional distress;
false arrest/false imprisonment; use of excessive force; and negligence.

2. The causes of action alleged herein arose in the County of Kings, State of New
York.

PARTIES

3. That at all times hereinafter mentioned, the Plaintiff was and still is a resident of
the County of Kings, State of New York.

4. Defendant, CITY OF NEW YORK (the “City”), is and was, at all times relevant
herein, a municipal entity created and authorized under the laws of the State of New York.

5. City is authorized by law to maintain a police department which acts as its agent in law enforcement and for which Defendant City is ultimately responsible.

6. City assumes the risks incidental to the maintenance of a police department and the employment of police officers.

7. Upon information and belief, the defendant, POLICE OFFICER ANDREA LEMMON, of the 71st Precinct, was and still is a resident of County of Kings in the State of New York.

8. Upon information and belief, the defendants, POLICE OFFICERS “JOHN DOES 1-4” (assaulting police officers; and referred to herein as “Police Officers”), of the 71st Precinct, were and still are residents of the County of Kings, State of New York.

9. City was, at all times relevant herein, the public employer of Police Officers.

10. At all times herein mentioned, Defendants, Police Officer Andrea Lemmon and Police Officers, are and were duly appointed and acting officers, servants, employees and agents of City, as employees of the New York City Police Department (“NYPD”), a municipal agency of City.

11. At all times relevant herein, Police Officer Andrea Lemmon and Police Officers were acting under the color of the laws, statutes, ordinances, regulations, policies, customs and/or usages of City and the NYPD in that, during the course and scope of their duties, they functioned as officers, agents, servants, and employees of City; they were acting for, and on behalf of, and with the power and authority vested in them by City; and they were otherwise performing actions in the course of their duties. They are being sued individually and in their official capacities.

STATEMENT OF FACTS

12. On or about September 6, 2017, at approximately 7:30 p.m., Plaintiff was in his residence, located at 432 Sterling Street, in the County of Kings, State of New York, along with his family, including his wife, son, and daughter.

13. Plaintiff resides in an apartment located on the second floor of a two-story residential building; Plaintiff enters his apartment by climbing staircases both inside and outside the building.

14. Upon information and belief, Plaintiff's daughter called the 911 emergency line after observing a family dispute at Plaintiff's residence.

15. Multiple police officers, including Police Officer Andrea Lemmon and Defendants Police Officers arrived at Plaintiff's second floor apartment.

16. Many of the police officers, including but not limited to Police Officer Andrea Lemmon and Defendants Police Officers, were in protective "riot" gear, including helmets and shields, when they arrived at Plaintiff's residence.

17. Without provocation, Defendant Police Officer Andrea Lemmon and Defendants Police Officers used excessive force and violently assaulted Plaintiff's son, Yaakov Eckhaus, continuously striking him about the body even when he laid on the ground.

18. Upon observing the violence being inflicted upon his son by Defendant Police Officer Andrea Lemmon and Defendants Police Officers, Plaintiff, a trained emergency medical technician, who volunteered for the Hatzolah ambulance service, attempted to speak to the police officers.

19. Plaintiff informed Defendant Police Officer Andrea Lemmon and Defendants Police Officers that he could provide his son with a sedative which he kept with him because of his volunteer ambulance work, and that their violence was unnecessary.

20. Without provocation or justification, and without reasonable suspicion and/or probable cause, Defendant Police Officer Andrea Lemmon and Defendants Police Officers ignored Plaintiff's request to sedate his son, placed Plaintiff in handcuffs and dragged Plaintiff out of his apartment, down the stairs, and outside onto the pavement in front of Plaintiff's residence.

21. Defendant Police Officer Andrea Lemmon and Defendant Police Officers, without reasonable suspicion and/or probable cause of wrongdoing by Plaintiff, violently knocked Plaintiff to the ground outside Plaintiff's residence, jumped on Plaintiff's back, and slammed Plaintiff's face into the concrete sidewalk.

22. At no time did Plaintiff physically resist Defendants' attempt to arrest Plaintiff.

23. While Plaintiff remained pinned to the ground, Defendant Police Officer Andrea Lemmon and Defendants Police Officers, without justifiable reason or excuse, sprayed mace, or some other irritant chemical, directly into Plaintiff's face and eyes.

24. City, via its agent the NYPD, Defendant Police Officer Andrea Lemmon, and Defendants Police Officers, without any reasonable suspicion and/or probable cause, unlawfully detained, handcuffed, arrested, verbally intimidated and mocked Plaintiff.

25. City, via its agent the NYPD, along with Defendant Police Officer Andrea Lemmon and Defendants Police Officers, without Plaintiff's permission and against his will, placed Plaintiff into a police car and transported him to the 71st Police Precinct in the County of Kings.

26. At the 71st Precinct, City, Defendant Police Officer Andrea Lemmon, and Defendants Police Officers (collectively, "Defendants") left Plaintiff restrained in handcuffs for a period of time in excess of three (3) hours.

27. Defendants denied Plaintiff's repeated requests for medical assistance, due to pain and impaired vision in his eyes because of the unknown chemical that Defendant Police Officer Andrea Lemmon and Defendants Police Officers sprayed in his eyes.

28. Defendants never informed Plaintiff of the reason for his arrest and detention.

29. Defendants eventually released Plaintiff without filing any criminal charges against him and without any explanation to Plaintiff as to why Defendants arrested and assaulted him.

30. Defendant Police Officer Andrea Lemmon and Defendants Police Officers placed Plaintiff in imminent fear of his life or limb.

31. Plaintiff was caused to suffer severe personal injuries, including, but not limited to, nerve damage in his right wrist, posterior vitreous detachment in his left eye, impaired vision in his left eye, and psychological and emotional distress of an undetermined permanent extent.

32. Defendants, their agents, servants and/or employees were willful, wanton, malicious, reckless, and negligent in performing their duties and in their failure to protect Plaintiff against unlawful seizure; in their failure to protect the Plaintiff from imminent and actual harm; in their failure to adequately train and supervise their personnel; in causing, permitting or allowing an unreasonable restriction of freedom and liberty to Plaintiff; in causing, allowing or permitting their personnel to improperly effectuate arrests without probable cause; in causing, allowing or permitting their personnel to falsely charge innocent persons with crimes; in violating Plaintiff's civil and constitutional rights, such that the Kings County District Attorney never filed any charges against Plaintiff.

33. Plaintiff suffered damages in an amount to be determined at trial and believed to be greater than this Court's jurisdictional amount.

NOTICE OF CLAIM

34. Plaintiff complied with all the conditions precedent set forth in General Municipal Law 50-E.

35. Plaintiff has served a Notice of Claim with the Comptroller of the City of New York within 90 days after the claim arose and more than thirty (30) days have elapsed since service of the Notice of Claim.

36. Defendants have failed and refused to make any adjustments to the claim, causing Plaintiff to commence this action.

37. This action was commenced in the United States District Court for the Eastern District of New York within one year and ninety days after the cause of action accrued.

AS AND FOR A FIRST CAUSE OF ACTION

(Assault)

38. The Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "37" of this Complaint herein with the same force and effect as if more fully set forth herein.

39. Defendant Police Officer Andrea Lemmon and Defendants Police Officers, while in the course of their employment with City, intentionally attempted and/or threatened to inflict bodily harm upon the Plaintiff.

40. Defendant Police Officer Andrea Lemmon and Defendants Police Officers intended that Plaintiff believe that he would be subject to imminent or offensive contact from Defendants Police Officers.

41. Defendant Police Officer Andrea Lemmon and Defendants Police Officers had the apparent ability to cause Plaintiff harm.

42. Plaintiff reasonably feared, because of the threatening behavior by Defendant Police Officer Andrea Lemmon and Defendants Police Officers, that Plaintiff was in danger of being caused bodily harm and/or offensive contact.

43. Defendant Police Officer Andrea Lemmon and Defendants Police Officers did indeed assault Plaintiff.

44. As a result of Defendant Police Officer Andrea Lemmon and Defendants Police Officers' assault of Plaintiff, Plaintiff has sustained permanent physical and psychological injuries.

45. As a result of the foregoing, Plaintiff suffered damages including physical injury, mental anguish, emotional distress, humiliation, serious personal injuries of mind as well as special damages and loss and/or diminution of life, all of which are permanent in nature.

AS AND FOR A SECOND CAUSE OF ACTION
(Intentional Infliction of Emotional Distress)

46. The Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "45" of this Complaint herein with the same force and effect as if more fully set forth herein.

47. Defendant Police Officer Andrea Lemmon and Defendants Police Officers acted with extreme and outrageous conduct with the intent to cause severe emotional distress to Plaintiff.

48. Defendant Police Officer Andrea Lemmon and Defendants Police Officers acted with extreme and outrageous conduct with disregard to the substantial probability of causing severe emotional distress to Plaintiff.

49. Defendant Police Officer Andrea Lemmon and Defendants Police Officers' extreme and outrageous conduct was the proximate and direct cause of the Plaintiff's injuries and damages set forth herein.

50. Plaintiff suffered severe emotional distress and physical injuries as a result of the Defendants' extreme and outrageous conduct.

51. As a result of the foregoing, Plaintiff suffered damages including physical injury, mental anguish, emotional distress, humiliation, serious personal injuries of mind as well as special damages and loss and/or diminution of life, all of which are permanent in nature.

AS AND FOR A THIRD CAUSE OF ACTION

(Battery)

52. The Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "51" of this Complaint herein with the same force and effect as if more fully set forth herein.

53. At the time of the complained events, Defendant Police Officer Andrea Lemmon and Defendants Police Officers, while in the course of their employment for City, intentionally and violently contacted Plaintiff without cause, provocation, justification, or consent.

54. As a result of the foregoing, Plaintiff suffered damages including physical injury, mental anguish, emotional distress, humiliation, serious personal injuries of mind as well as special damages and loss and/or diminution of life, all of which are permanent in nature.

AS AND FOR A FOURTH CAUSE OF ACTION

(Negligent Infliction of Emotional Distress)

55. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "54" of this Complaint herein with the same force and effect as if more fully set forth herein.

56. At the time of the complained of events, Defendant Police Officer Andrea Lemmon and Defendants Police Officers owed Plaintiff a duty of care.

57. Defendant Police Officer Andrea Lemmon and Defendants Police Officers acted with extreme and outrageous conduct which negligently caused severe emotional distress and physical harm to Plaintiff.

58. Defendant Police Officer Andrea Lemmon and Defendants Police Officers acted with extreme and outrageous conduct with disregard to the substantial probability of causing severe emotional distress.

59. Defendant Police Officer Andrea Lemmon and Defendants Police Officers' extreme and outrageous conduct was the proximate and direct cause of the Plaintiff's injuries and damages set forth herein.

60. As a result of Defendant Police Officer Andrea Lemmon and Defendants Police Officers' extreme and outrageous conduct, Plaintiff suffered severe emotional distress and physical harm.

61. As a result of the foregoing, Plaintiff suffered damages including physical injury, mental anguish, emotional distress, humiliation, serious personal injuries of mind as well as special damages and loss and/or diminution of life, all of which are permanent in nature.

AS AND FOR A FIFTH CAUSE OF ACTION
(False Arrest)

62. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "61" of this Complaint herein with the same force and effect as if more fully set forth herein.

63. Defendant Police Officer Andrea Lemmon and Defendants Police Officers stopped and confined Plaintiff.

64. Plaintiff was aware at the time of the aforesaid confinement that he was being confined, i.e., arrested.

65. Plaintiff did not consent to the aforesaid confinement.

66. The Defendant Police Officer Andrea Lemmon and Defendants Police Officers did not have probable cause to arrest Plaintiff.

67. The confinement of Plaintiff was not privileged.

68. As a result of the foregoing, Plaintiff suffered damages including physical injury, mental anguish, emotional distress, humiliation, serious personal injuries of mind as well as special damages and loss and/or diminution of life, all of which are permanent in nature.

AS AND FOR A SIXTH CAUSE OF ACTION
(Use of Excessive Force)

69. Plaintiff repeats and reiterates each and every allegation contained in paragraphs “1” through “68” of this Complaint herein with the same force and effect as if more fully set forth herein.

70. Defendant Police Officer Andrea Lemmon and Defendants Police Officers’ use of force on Plaintiff, at all times relevant herein, was not objectively reasonable based on the information they had when the force was used.

71. As a result of the foregoing, Plaintiff suffered damages including physical injury, mental anguish, emotional distress, humiliation, serious personal injuries of mind as well as special damages and loss and/or diminution of life, all of which are permanent in nature.

AS AND FOR A SEVENTH CAUSE OF ACTION
(Negligent Hiring)

72. Plaintiff repeats and reiterates each and every allegation contained in paragraphs “1” through “71” of this Complaint herein with the same force and effect as if more fully set

forth herein.

73. Defendant Police Officer Andrea Lemmon and Defendants Police Officers' extreme and outrageous conduct, and the resulting damages suffered by Plaintiff, were brought about by the City's failure to carry out the aforesaid duties to exercise reasonable care when hiring, supervising, and retaining, employees.

74. As a result of the foregoing, Plaintiff suffered damages including physical injury, mental anguish, emotional distress, humiliation, serious personal injuries of mind as well as special damages and loss and/or diminution of life, all of which are permanent in nature.

AS AND FOR AN EIGHTH CAUSE OF ACTION
(Negligent Supervision)

75. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "74" of this Complaint herein with the same force and effect as if more fully set forth herein.

76. City owed Plaintiff a duty exercise reasonable care when supervising employees to ensure that they do not hire individuals who may pose a threat of injury to members of the public.

77. Defendant Police Officer Andrea Lemmon and Defendants Police Officers' extreme and outrageous conduct, and the resulting damages suffered by Plaintiff, were brought about by the City's failure to carry out their duty to exercise reasonable care when supervising employees.

78. As a result of the foregoing, Plaintiff suffered damages including physical injury, mental anguish, emotional distress, humiliation, serious personal injuries of mind as well as special damages and loss and/or diminution of life, all of which are permanent in nature.

AS AND FOR A NINTH CAUSE OF ACTION

(Negligent Retention)

79. Plaintiff repeats and reiterates each and every allegation contained in paragraphs “1” through “78” of this Complaint herein with the same force and effect as if more fully set forth herein.

80. City owed Plaintiff a duty to exercise reasonable care when retaining employees to ensure that they do not pose a threat of injury to members of the public.

81. Defendant Police Officer Andrea Lemmon and Defendants Police Officers’ extreme and outrageous conduct, and the resulting damages suffered by Plaintiff, were brought about by the City’s failure to carry out their duty to exercise reasonable care when retaining employees.

82. As a result of the foregoing, Plaintiff suffered damages including physical injury, mental anguish, emotional distress, humiliation, serious personal injuries of mind as well as special damages and loss and/or diminution of life, all of which are permanent in nature.

AS AND FOR A TENTH CAUSE OF ACTION

(Respondeat Superior)

83. Plaintiff repeats and reiterates each and every allegation contained in paragraphs “1” through “82” of this Complaint herein with the same force and effect as if more fully set forth herein.

84. At the complained of events, Defendant Police Officer Andrea Lemmon and Defendants Police Officers were acting within the scope of their employment with the Defendant City.

85. The complained of events occurred while Defendant Police Officer Andrea Lemmon and Defendants Police Officers were on duty, in and during the course and scope of

their duties and functions as New York City Police Officers, and while they were acting as agents and employees of the Defendant City.

86. Defendant City was able to exercise control over Defendant Police Officer Andrea Lemmon's activities and Defendants Police Officers' activities.

87. Defendant City failed to exercise the care and duty to protect Plaintiff by stopping the tortious acts of Defendant Police Officer Andrew Lemmon and Defendants Police Officers.

88. Defendant City is liable to Plaintiff under the common law doctrine of *respondeat superior*.

89. As a result of the foregoing, Plaintiff suffered damages including physical injury, mental anguish, emotional distress, humiliation, serious personal injuries of mind as well as special damages and loss and/or diminution of life, all of which are permanent in nature.

WHEREFORE, Plaintiff demands judgment against the Defendants in this action, jointly and severally, for compensatory damages, punitive damages on each cause of actions, awarding Plaintiff reasonable attorney's fees, costs and disbursements of this action, and such other and further relief as this court deems just and proper.

Dated: New York, NY
July 7, 2023

TAMIR MARKUS LLP

/s/ Zaki Isaac B. Tamir

Zaki Isaac B. Tamir, Esq.

Attorneys for Plaintiff

866 United Nations Plaza, Ste. 481

New York, NY 10004

(212) 444-9970